

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 30, 2026
8:30 AM/1:30 PM

4. APRIL LOCKHART V. DAVID MERCADO

PFL20200534

On February 4, 2026, Petitioner filed a Request for Order (RFO) seeking child custody and clarification of the court's prior orders. The parties were referred to Child Custody Recommending Counseling (CCRC) and a review hearing was set for the present date.

Respondent filed an RFO on February 5th seeking custody and visitation orders and sanctions. The RFO and the Notice of Tentative Ruling were served on February 13th, however Respondent failed to serve a blank FL-320 as required.

Minor's Counsel filed and served a Responsive Declaration to Request for Order on February 17th.

Petitioner filed another RFO on February 24th seeking orders regarding expenses for the extracurricular activities of the minor.

Respondent filed another RFO on February 25th seeking removal of the CCRC mediator. The request was denied on an ex parte basis but the CCRC appointment was vacated and the issue was set to join with the already scheduled hearing date. It was served with the Notice of Tentative Ruling on March 25th. Again, the required blank FL-320 was not served.

Minor's Counsel filed her Responsive Declaration to Request for Order on March 6, 2026.

On April 9th, Respondent filed and served Respondent's Objection to Untimely Service of Request for Order and Request for Sanctions.

Respondent filed and served a Responsive Declaration to Request for Order on April 17th.

On April 22nd, Petitioner filed three Proof of Service documents alleging service of the following: "FL300 Declaration and Exhibits" on February 18th, "Request for Orders/Enforcement" on April 8th and "Amended Request for Orders/Enforcement" on April 8th.

Respondent objects to the April 8th service as untimely.

Respondent's objection is sustained. The court finds service of the RFO to be late pursuant to Civil Procedure section 1005(b) which states all moving papers are to be

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 30, 2026
8:30 AM/1:30 PM

served at least sixteen court days before the hearing date. Cal. Civ. Pro. § 1005(b). Additionally, any period of notice, or any right or duty to do any act or make any response within any period on a date certain shall be extended by two court days when service is perfected electronically. Cal. Civ. Pro. § 1010.6(a)(3)(B). Section 1005(b), in conjunction with Section 1010.6, would have made April 6th the last day for electronic service. As such, the objection is sustained and the February 24th RFO is dropped from calendar.

Petitioner asks the court to order co-parenting counseling to occur in person on weekdays at, or after, 4:00pm. She further requests an order regarding the scope of Minor's Counsel's final decision-making authority and clarification as to whether that authority extends to decisions regarding the format, scheduling, or method of counseling services. Finally, she asks that the court clarify its prior orders regarding Respondent's use of the Domestic Violence Restraining Order (DVRO) to change the format of co-parenting counseling.

Respondent asks that the court order co-parenting counseling to resume with Relationship Therapy Center and order that sessions be conducted via Zoom. He asks for a clear enforcement mechanism for the decisions of Minor's Counsel without the parties having to continue returning to court. He also asks for removal of the mediator, Rebecca Nelson, and appointment of a new mediator or an order for the parties to attend private mediation. Finally, he is requesting sanctions against Petitioner pursuant to Family Code § 271.

Minor's Counsel is in support of ongoing co-parenting counseling and does not have a preference regarding the format however she does note that continued co-parenting counseling is imperative for the wellbeing of the minor.

The request to conduct co-parenting counseling via Zoom is granted. Petitioner has failed to establish grounds for her refusal to participate in Zoom sessions and the court sees no reason why such sessions could not be beneficial to the parties. The court is not willing to weigh in on such minute detail as the date and time of the sessions, especially given that the provider's calendar will undoubtedly be a factor in scheduling. The parties are ordered to participate in co-parenting counseling, this includes working together in good faith to schedule the sessions.

As repeatedly stated in the court's prior orders, Minor's Counsel has final decision-making authority over all co-parenting issues. Co-parenting counseling is, by its very nature, a co-parenting issue. This includes providers, scheduling, format, etc. Minor's

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 30, 2026
8:30 AM/1:30 PM

Counsel has final decision-making authority. Refusal to comply with the decision of Minor's Counsel is effectively refusal to comply with a court order and thus enforcement may be had through an Order to Show Cause for Contempt.

The court grants the request to reassign the CCRC mediator. The clerk of the court will assign the next in order.

As to the request for sanctions, "[s]ection 271 provides that a family court may impose an award of attorney fees and costs 'in the nature of a sanction' where the conduct of a party or attorney 'frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation between the parties and attorneys.' (§ 271, subd. (a).)" (*In re Marriage of Tharp* (2010) 188 Cal.App.4th 1295, 1316.) "Expressed another way, section 271 vests family law courts with an additional means with which to enforce this state's public policy of promoting settlement of family law litigation, while reducing its costs through mutual cooperation of clients and their counsel." (*Id.* at 1318.) The court finds both parties' actions throughout the pendency of this case fall squarely within the behaviors section 271 is designed to alleviate. The number of RFOs that have been filed for this date alone is excessive and unnecessary. The court is not imposing sanctions at this time, as it finds Respondent equally culpable in his actions.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #4: THE REQUEST TO CONDUCT CO-PARENTING COUNSELING VIA ZOOM IS GRANTED. THE COURT IS NOT WILLING TO WEIGH IN ON SUCH MINUTE DETAIL AS THE DATE AND TIME OF THE SESSIONS, ESPECIALLY GIVEN THAT THE PROVIDER'S CALENDAR WILL UNDOUBTABLY BE A FACTOR IN SCHEDULING. THE PARTIES ARE ORDERED TO PARTICIPATE IN CO-PARENTING COUNSELING, THIS INCLUDES WORKING TOGETHER IN GOOD FAITH TO SCHEDULE THE SESSIONS.

AS REPEATEDLY STATED IN THE COURT'S PRIOR ORDERS, MINOR'S COUNSEL HAS FINAL DECISION-MAKING AUTHORITY OVER ALL CO-PARENTING ISSUES. CO-PARENTING COUNSELING IS, BY ITS VERY NATURE, A CO-PARENTING ISSUE. THIS INCLUDES PROVIDERS, SCHEDULING, FORMAT, ETC. MINOR'S COUNSEL HAS FINAL DECISION-MAKING AUTHORITY. REFUSAL TO COMPLY WITH THE DECISION OF MINOR'S COUNSEL IS EFFECTIVELY REFUSAL TO COMPLY WITH A COURT ORDER AND

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 30, 2026
8:30 AM/1:30 PM

THUS ENFORCEMENT MAY BE HAD THROUGH AN ORDER TO SHOW CAUSE FOR CONTEMPT.

THE PARTIES ARE ORDERED TO APPEAR ON THE ISSUE OF APPOINTING A NEW CCRC MEDIATOR AND ON THE ISSUE OF SANCTIONS.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 30, 2026
8:30 AM/1:30 PM

5. NICOLE LONG V. KYLE LONG

24FL0660

On February 10, 2026, Petitioner filed a Request for Order (RFO) seeking spousal support, child support, and attorney's fees. She filed her Income and Expense Declaration concurrently therewith. All required documents were served on Respondent on February 17th.

Respondent filed and served his Responsive Declaration to Request for Order and his Income and Expense Declaration on April 14th.

Petitioner filed and served an updated Income and Expense Declaration on April 20th.

Petitioner is requesting guideline child and spousal support along with an order for the parties to equally share in the costs of all extracurricular activities and uninsured medical expenses. She further requests attorney's fees in the amount of \$10,000 pursuant to Family Code § 2030.

Respondent agrees to guideline support but asks that the support calculations be made using Petitioner's updated income. He further agrees to equally splitting the cost of agreed upon extracurricular activities. He asks that the parties alternate claiming the children on their taxes, Petitioner in the odd years and Respondent in the even years. He asks that the parties be ordered to meet and confer on the issue of health insurance each year during open enrollment. Finally, Respondent opposes the request for attorney's fees.

Regarding support, utilizing the figures as outlined in the attached Xspouse report, the court finds that child support is \$1,908 per month and spousal support per the Alameda formula is \$436 per month. Respondent is ordered to pay Petitioner \$2,344 per month as and for child support and temporary spousal support, payable on the 15th of the month (and deemed late if paid after the 20th of the month) until further order of the court or legal termination. This order is effective as of February 15, 2026.

The court finds the above order results in arrears in the amount of \$7,032 through and including April 15, 2026. The court orders Respondent pay Petitioner \$293 on the 1st of each month until paid in full (approximately 24 months). If a payment is late or missed the remaining balance is due in full with legal interest within five (5) days.

In addition to the foregoing monthly support payments, the parties are ordered to equally share in any uninsured medical care costs for the children, childcare costs when such costs are incurred as a result of employment or necessary education for employment,